DIVIDED OPINION

What the stakeholders have to say about the practice



"There is **a lot of chatter about people moonlighting in the tech industry.** This is cheating—plain and simple"

RISHAD PREMJI,
Executive Chairman, Wipro (on Twitter)



"In today's world where employees want choices, I think we have to embrace **two models—one is having employees full time on board and one is engaging with gig workers.** So doing multiple jobs is not the problem but it's how you do it. Are you being transparent about it?"

DEBJANI GHOSH, *President, Nasscom*



"I don't think moonlighting is that rampant... **If someone is meeting the efficiency and productivity norms and he wants to make some extra money as long as he is not committing fraud**, he is not doing something which is against the values and the ethics of the company, I have no problem"

C.P. GURNANI, *CEO, Tech Mahindra*



"For companies to say that while you're working for us, you should not think about a startup or **should not think of consulting for your friends, is a doomed-to-fail exercise... However, I do agree with one part of the moonlighting argument that if one is a contracted employee** of a company, and your contract says non-compete, has confidentiality clauses, then if you violate that you're obviously running afoul of the contract law"

RAJEEV CHANDRASEKHAR, *Minister of State for Electronics & IT; Skill Development & Entrepreneurship*

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V. Balakrishnan, a former board member at Infosys, reckons that IT companies that scrambled to adjust to remote working during the pandemic will have to figure out ways to deal with the evolving situation as things appear to stabilise. "I think freelancing is a new norm in the IT industry. Big companies will have to get used to it," he says. Nasscom president Debjani Ghosh too framed the conversation in terms of how the past two pandemic years have forced a re-think of employee engagement models. "I think we have to embrace two models—one is having employees full-time on board and one is engaging with gig workers." Rajeev Chandrasekhar, the Union minister of state for electronics and information technology, recently offered a line of reasoning from an entrepreneurship point of view. Companies that want to pin their employees down and not allow them to work on their start-up, he said, 'are doomed to fail'. But moonlighting, he added, could not run afoul of an employee's contractual obligations.

Dual employment, which means working full-time for two employers, is prohibited by law, but there's no bar on gig job or part-time work, points out Harpreet Singh Saluja, president of the Pune-based Nascent Information Technology Employees Senate, an association that has about 4,000 registered members. "If a person has got free time, he is free to do anything he wants to do." But Saluja feels part-time work is not widespread. "Seriously speaking, they do not have that kind of time."

KEEPING TABS

With companies cracking down, there's a wariness about moonlighting. But IT hands say that has always been the case. "Some of my friends and colleagues will not take up a competitor's work because they know it can backfire," says the start-up product lead cited earlier. Digital forensic experts point out to tools that can provide some clues—webcams, biometrics, activity monitoring, keystroke monitoring and data transfer monitoring. "You can deploy these and then correlate all the data points to see if there is a behaviour change," says Jaju. Keeping a tab on large workforces, however, is not easy.

Moonlighting, however, isn't the only fallout of the pandemic-induced disruption. Proxy interviews, where candidates are allegedly helped by others during virtual recruitment, are supposedly another. Jaju says a handful of cases his firm has probed involved candidates who got into firms via proxy interviews facilitated by recruitment agencies. "We are investigating many cases where there have been proxy interviews," says Arpinder Singh of EY. But it is moonlighting that has stirred up the tech sector. If it was inconspicuous earlier, it's now a focal point—one from which the contours of the evolving conversations about a changing workforce and flexibility are being framed. ■